

ESTATES

ESTATE OF JOAN BUTER

CASE NUMBER: 25PB-0033049

This matter is on calendar for hearing on an amended Report of Executor and Petition for Final Distribution on Waiver of Account. The amended Report and Petition fails to address the issues raised on April 20, 2026. A “Disclaimer of Inheritance Rights and Assignment of Interest” was filed by Mikayla McMaster and Jayda Buter, each irrevocably disclaiming their right to any and all real and person property of the estate. The disclaimers also attempt to assign their interest to Kari Ives. In probate matters, there are two different ways to express a desire not to take a share of the estate. First, a person may “disclaim” their interest, which means they are treated as if they predeceased the decedent and their share is distributed to their own intestate heirs. A disclaimer is irrevocable. Probate Code Section 281. The second is an “Assignment”, where the person directs that their share be given to a particular person. Here, Ms. McMaster and Ms. Buter have disclaimed their interest, therefore their intestate heirs are now intestate heirs of the decedent and are entitled to notice of these proceedings. The attempted assignments filed on May 14, 2026, are without effect. If the intent is for the decedent’s estate to pass solely to Ms. Ives, the intestate heirs of Ms. McMaster and Ms. Buter may file an assignment of their interest.

The intestate heirs of Ms. McMaster and Ms. Buter have not been identified, therefore the Court is unable to determine if proper notice has been provided and the accounting properly waived. The matter is continued to **Monday, July 27, 2026, at 2:30 p.m. in Department 44** for further proceedings regarding the Report of Executor and Petition for Final Distribution on Waiver of Account. An amended Petition is required to be filed to address the issues raised above. Petitioner is also required to file and serve a new Notice of Hearing for the continued hearing date, along with a copy of the amended Petition, on all parties entitled to notice. **No appearance is necessary on today’s calendar.**

ESTATE OF CYNTHIA COMBS

CASE NUMBER: 23PB-0032123

This matter is on calendar for further proceedings Regarding Petition for Order Approving Listing Agreement and Modifying or Clarifying Sale-Confirmation Requirement. The matter was previously continued to allow Ms. Sivey to file a formal objection. A formal objection has not been filed. Petitioner was previously granted full authority under the IAEA and may proceed with administration of the estate through that authority. The Petition is **GRANTED**, insofar as it confirms Petitioner may act with full authority under the IAEA. The remaining requests of the Petition are moot, as all other requests are incidental to full authority under the IAEA. A proposed Order has been lodged with the Court and will be modified to reflect the Court’s ruling. The Court notes the future date of May 17, 2027, for Status of Administration. **No appearance is necessary on today’s calendar.**

ESTATE OF CHRISTOPHER DILLEY

CASE NUMBER: 24PB-0032467

This matter is on calendar for Status of Administration and for hearing on a Petition for Termination of Further Proceedings and Discharge of Personal Representative. The matter has been properly noticed with proof of service on file. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed Order has been lodged and will be executed. The clerk is directed to close the file upon processing of the order. **No appearance is necessary on today’s calendar.**

ESTATE OF MICHAEL GARRETT

CASE NUMBER: CVPB21-0031232